

The Invariant Core

Why Dworkin's Right-Answer Doctrine Functions as an Equilibrium Selector, and Why the Invariant Is Not Trivial

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Abstract

When legal texts run out before a case is settled, two equally competent judges can reach different outcomes without either being wrong in any formal sense. Ronald Dworkin spent forty years denying that this indeterminacy is the last word: even in the hardest cases, he held, there is a legally correct answer, and the judge's task is to find it rather than to make it.

This paper reads that position not as a claim about moral truth but as a mechanism for selecting among multiple admissible solutions, one whose original 1977 construction was rebuilt on entirely new grounds four separate times, in 1986, 1996, 2006 and 2011, without the operative instruction to the judge ever changing. That combination, mutable scaffolding around a conserved core, resembles, in the vocabulary of extended phenotype theory, a replicator of unusual transmission fitness.

A natural objection is that this invariant is banal: every serious theory of adjudication tells judges to find the answer rather than invent it. This paper specifies precisely what is invariant and shows the objection to be mistaken. What survives across Dworkin's reconstructions is not the generic injunction against ad hoc decision, which rival theories share, but a stronger and rarer commitment: the denial that any case exists in which the available materials fail to rank the candidate answers. Textualism, proceduralism and legal pragmatism all build in a point at which the theory concedes the material is exhausted and falls back on a default rule. Dworkin's thesis is defined by the absence of that stopping point. A second objection, that this commitment is shared by the wider non-positivist family and so is not distinctively Dworkinian, is met directly rather than deflected.

Evolutionary game theory, extended phenotype theory and Scott's infrapolitics explain why that specific, no-stopping-point commitment can acquire exceptional transmission fitness and what its success redistributes, with the strategic account conditioned on the local prestige economy rather than asserted as universal. A proxy used in an earlier draft of this analysis, the post-1994 diffusion of proportionality reasoning, is withdrawn here: proportionality descends principally from German constitutional dogmatics and Alexy's balancing formalism, a rival and largely independent research programme, so its diffusion is not evidence for Dworkin's thesis specifically. Section 10 specifies, without yet executing, a properly targeted test built on the conduct the thesis actually predicts should be suppressed: judicial declarations that the search for an answer has failed.

Keywords: legal evolution, evolutionary game theory, extended phenotype, Ronald Dworkin, right-answer thesis, judicial review, constitutional theory, equilibrium selection, legal

memetics, Robert Alexy, proportionality, natural law, John Finnis, non-positivism, political question doctrine, non liquet, prestige economy, evolutionarily stable strategy

1. Introduction

A legal system turns disputes into outcomes. Most of the time it does so by subsumption: a rule covers the facts, and the outcome follows. The interesting cases are the ones where it does not. Statutes contain gaps, precedents conflict, constitutional clauses are drafted in language abstract enough to bear several honest readings. In those cases the question is no longer what the rule requires but which of several defensible outcomes the system will produce.

H. L. A. Hart's answer was that judges exercise discretion in such cases: the law having run out, they legislate interstitially. Ronald Dworkin spent his career attacking that answer. His counter-thesis was that even where no settled rule resolves the case, one party may nonetheless have a right to win, and the judge's duty is to discover that right rather than invent it retroactively.

The debate that followed has been conducted almost entirely in the register of analytic jurisprudence: is the thesis true, is it coherent, does it survive the objections of Hart, Raz, Waldron, Fish and Posner. This paper asks a different pair of questions. What, precisely, does the thesis commit a judge to, once its four successive philosophical foundations are set aside? And why did that commitment, whatever it turns out to be, spread and persist across constitutional courts that never had to accept Dworkin's metaphysics in order to inherit his instruction to the judge?

Answering the first question honestly requires meeting an objection head on, because the obvious candidate for the invariant is a truism. Every serious theory of adjudication instructs judges to reason rather than to guess. If that generic injunction were all that survived Dworkin's four reconstructions, the finding would be trivial and the evolutionary reading built on it would be decoration. Section 8 takes this objection seriously and shows that what actually survives is a narrower and much less common commitment: the denial that the search for the right answer can fail. That specification is this paper's central contribution, and everything from Section 9 onward depends on it.

Section 2 sets out the minimum analytical apparatus this argument needs, and only that. Section 3 states, briefly, the sourcing convention this paper follows. Sections 4 to 7 reconstruct Dworkin's position from the primary texts and identify the invariant. Section 8 states and answers the triviality objection. Section 9 gives the evolutionary explanation of why the specific, no-stopping-point commitment has exceptional transmission fitness, and what it redistributes. Section 10 reports a preliminary chronological check. Section 11 specifies tests for future work, and Section 12 states the limits of the argument.

2. The Framework: Three Constructs, Stated Once

This paper needs three constructs from evolutionary theory applied to law, no more. Readers already familiar with the programme's fuller apparatus, extended phenotype theory, the Cultural Load Index in its complete three-dimension form, evolutionary game theory, the implementation gap, infrapolitical selection pressure and the Dennett-Nash matrix, developed at length in the programme's foundational paper (Lerer, forthcoming a), may proceed to Section 3.

2.1 Equilibrium selection

Wherever a system of rules underdetermines an outcome, more than one resolution is sustainable and none is uniquely required. A mechanism is needed to pick one. Some legal problems are solved by pure convention, as with which side of the road to drive on: arbitrary, but effective once everyone coordinates on it. Dworkin's problem cannot be solved that way, because his claim is that the answer selected must be correct, not merely agreed.

2.2 Evolutionarily stable strategies (ESS)

Here the units are not norms but strategies: ways of deciding, arguing, complying. A strategy is evolutionarily stable when, once dominant in a population, no alternative strategy can invade without paying an immediate cost greater than the benefit it obtains. Fitness, in this sense, is not correctness. A strategy can dominate because of the payoff structure of its environment, prestige, citation, risk of reversal, entirely independently of its legal merit.

2.3 The Cultural Load Index (CLI)

This programme's instrument for measuring how difficult a norm is to dislodge, on the basis of three dimensions: the specialisation required to understand it, the density of doctrinal dependencies built on it, and the degree of elite gatekeeping over who may legitimately invoke it. A score approaching the maximum across all three indicates a norm that is not prohibited from being changed, but whose coordination cost of change exceeds what any individual actor can pay.

These three constructs are established, or at least openly conjectural and flagged as such, elsewhere in this research programme. Their application to Dworkin's thesis here is the wager under test, not a settled result being repeated.

3. A Note on Method

Dworkin wrote for nearly forty years, and his vocabulary shifted substantially across that period. Much secondary commentary flattens the shifts and attributes to him a single, monolithic thesis he never held in those exact terms. This paper dates every concept to the specific work in which it appears, and marks clearly which quotations are taken from an English original and which from a Spanish edition, with an English rendering supplied for the reader's convenience but carrying no independent authority. Full sourcing conventions and edition details are given in the Note on Sources preceding the reference list.

4. The Problem Misdescribed: Equilibrium Multiplicity, Not Semantic Vagueness

The standard reading treats Dworkin as responding to a problem of open texture in language. He is not. The real problem is selection among multiple equilibria: any system of rules with gaps or antinomies admits more than one sustainable solution for the same case, and different judges may converge on different solutions without any of them being incorrect in a formal sense.

The decisive evidence is not an external inference. It is a concession by Dworkin, in the very essay where he defends the right-answer thesis:

It should be apparent, however, that any particular judge's theory of fit will often fail to produce a unique interpretation. [...] Just as two readings of a poem may each find sufficient support in the text to show its unity and coherence, two principles may each find enough support in the various decisions of the past to satisfy any plausible theory of fit. In that case substantive political theory (like substantive considerations of artistic merit) will play a decisive role.

A Matter of Principle (1985), pp. 143-144.

This is the equilibrium-selection problem stated by the author. Fit, that is adjustment to prior legal materials, is the constraint defining the set of admissible equilibria; Dworkin concedes that it frequently fails to reduce that set to one element. What collapses the multiplicity is substantive political theory. The selector, then, is not law: it is the interpreter's moral and political theory operating under an admissibility constraint. The right-answer thesis is the claim that this selector converges, not the claim that law determines.

Dworkin reinforces the point at a more abstract level twenty-five years later, denying that any neutral second-order procedure exists:

Cuando las cuestiones de procedimiento equitativo son controvertidas, lo son de principio a fin: no hay un procedimiento de decisión por defecto para decidir sobre los procedimientos de decisión.

Justice for Hedgehogs (2011), section on constitutional review, pp. 408-409. Spanish edition (FCE); English rendering mine: "When questions of fair procedure are controversial, they are controversial all the way down: there is no default decision procedure for deciding on decision procedures."

And he expressly denies that indeterminacy can be asserted by default:

La afirmación de no hay respuesta correcta es una afirmación jurídica, insiste en que no hay ningún argumento que fortalezca más la alegación de una de las partes, y debe apoyarse, por lo tanto, en alguna teoría o concepción del derecho.

Justice for Hedgehogs (2011), ch. V, "Internal Scepticism." Spanish edition; English rendering mine: "The claim that there is no right answer is a legal claim, insisting that no argument makes one party's case stronger, and it must therefore rest on some theory or conception of law."

This is the first appearance of the feature Section 8 will show to be the actual invariant. Dworkin does not merely say the judge should look hard. He denies that looking hard can come up empty.

5. What Kind of Objectivity Dworkin Holds, and What Kind He Does Not

A frequent error is to attribute external moral realism to Dworkin. He rejects it explicitly, at both ends of the arc. In 2006 he deflates the metaphysical reading of his own thesis:

My thesis about right answers in hard cases is a very weak and commonsensical legal claim. It is a claim made within legal practice rather than at some supposedly removed, external, philosophical level. [...] They think I must be saying not just that there are right answers in some ordinary way, but that there are really right answers, or really real right answers, or right answers out there, or something else up the ladder of verbal inflation.

Justice in Robes (2006), ch. 1, "The Right Answer Farrago," pp. 41-42.

In 2011, grounding objectivity, he again posits no moral entities in the world:

Estas teorías proceden del interior mismo de la moral: son de por sí juicios morales. Eso es lo que significa la independencia en la filosofía moral.

Justice for Hedgehogs (2011), ch. I, "Baedeker." Spanish edition; English rendering mine: "These theories proceed from within morality itself: they are themselves moral judgements. That is what independence means in moral philosophy."

The consequence for the model is worth stating precisely, because it corrects a naive formulation and, again, foreshadows Section 8. Dworkin posits no objective payoff function out there. He posits that objectivity is internal to argument, and that there is always, in principle, a better argument. This does not weaken the equilibrium-selection reading; it sharpens it, and it is the philosophical root of the no-stopping-point commitment. The payoff function is unauditable not because it is metaphysical but because it is internalist: by construction there is no tribunal external to moral reasoning from which to verify it, and therefore no point at which the theory itself can say the search has failed. Unfalsifiability follows not from an excess of metaphysics but from its deliberate absence.

6. Hercules: Idealisation of a Selector That Never Stops

Hercules appears in 1977 as a methodological device and returns in 1986 refounded on integrity. Both formulations share the decisive feature: superhuman capacity applied without any stated limit.

Para este propósito he inventado un abogado dotado de habilidad, erudición, paciencia y perspicacia sobrehumanas, a quien llamaré Hércules.

Taking Rights Seriously (1977), ch. 4, "Hard Cases," sect. 4. Spanish edition (Ariel), trans. Guastavino; English rendering mine: "For this purpose I have invented a lawyer endowed with superhuman skill, learning, patience and acumen, whom I shall call Hercules."

I shall use for that purpose an imaginary judge of superhuman intellectual power and patience who accepts law as integrity. Call him Hercules.

Law's Empire (1986), ch. 7, "Integrity in Law," p. 239.

Structurally, Hercules performs the function of the rational player in classical game theory: an idealised limit, useful as a reference point, empirically unattainable. The decisive difference is epistemic. The von Neumann-Morgenstern rational player is falsifiable, tested against observed behaviour and abandoned when it fails to predict. Hercules admits no such test, because every deviation is attributed to the real judge rather than to the model:

La objeción señala que, en ocasiones, cometerán tales errores, porque son seres falibles y, en todo caso, porque discrepan. Pero naturalmente, aunque en cuanto críticos sociales sepamos que se cometerán errores, no sabemos cuándo, porque tampoco nosotros somos Hércules.

Taking Rights Seriously (1977), ch. 4, sect. 6. Spanish edition; English rendering mine: "The objection observes that judges will sometimes make such mistakes, because they are fallible and, in any case, because they disagree. But of course, though as social critics we know mistakes will be made, we do not know when, because we are not Hercules either."

The ideal is unattainable and simultaneously the only authority entitled to know the answer. The gap between the actual decision and the correct answer is always charged to the judge, never to the existence of the convergence point. Dworkin goes so far as to convert the thesis's resilience into an argument in its favour:

El "mito" de que en un caso difícil hay una única respuesta correcta es tan recalcitrante como afortunado. Ambas condiciones pueden constituirse en argumentos para demostrar que no es un mito.

Taking Rights Seriously (1977), ch. 13, sect. 3. Spanish edition; English rendering mine: "The 'myth' that there is a single right answer in a hard case is as recalcitrant as it is successful. Both conditions may themselves be turned into arguments that it is no myth."

Hercules, in other words, is not simply an idealisation of diligence. He is the idealisation of a search that structurally cannot return no answer.

7. The Central Finding: An Invariant Operative Core Under Mutable Justification

Between 1977 and 2011 Dworkin rebuilds the justificatory apparatus of his position completely: the original rights thesis of 1977 is replaced by integrity in 1986, then by the moral reading of democracy in 1996, then by a deflationary restatement in 2006, then by the unity of value in 2011. Five successive foundations in all, the original construction and four full reconstructions, each new foundation replacing the last.

That the vehicle changes is neither a weakness nor an evasive manoeuvre. It is genuine intellectual development, and reading it otherwise would commit the same unfalsifiability this paper goes on to examine. The finding is structural, not biographical: a replicator whose phenotypic expression, the judicial conduct it induces, remains constant while its justificatory apparatus recombines freely is, in extended-phenotype terms, a replicator of exceptional fitness. Each refutation aimed at the vehicle leaves the core untouched, and each reformulation widens the set of doctrinal niches in which it can lodge.

But this description is incomplete until the core is specified with enough precision to survive the objection that it is merely the truism every adjudicative theory shares. Section 8 supplies that specification.

8. The Objection From Triviality, and Why the Invariant Survives It

Here is the objection in its strongest form. Find the answer, don't invent it is not distinctive of Dworkin. Textualists tell judges to find what the enacted text requires rather than legislate from the bench. Formalists tell judges to find what the applicable rule dictates. Even legal realists who concede wide discretion still instruct judges to constrain that discretion with principled reasons rather than personal preference. If this is what survives Dworkin's four reconstructions, Section 7 has not found anything about Dworkin in particular. It has found a banality common to nearly every serious theory of adjudication, dressed in evolutionary vocabulary.

The objection is well aimed but conflates two different invariants. The generic injunction against ad hoc decision is indeed shared across rival theories, and nothing in this paper claims otherwise. What is specific to Dworkin, and what actually survives across all four reconstructions, is a stronger and much rarer commitment: the denial that the available materials can ever fail to rank the candidate answers. Every rival theory of adjudication builds in a stopping point, a case type in which the theory itself concedes that the material is exhausted and licenses a fallback. Textualism concedes indeterminacy and falls back on canons such as the rule of lenity or the presumption against retroactivity. Hart's own account concedes discretion once the rule of recognition runs out. Waldron's proceduralism concedes reasonable disagreement and hands the decision to a majoritarian process precisely because no theory-internal answer is available. Posner's pragmatism concedes that adjudication sometimes reduces to a policy judgment the theory does not purport to derive.

Dworkin's thesis has no comparable stopping point, in any of its four foundations. The 1985 concession discussed in Section 4, that fit will often fail to narrow the field, is not an admission of indeterminacy; it is immediately followed by the claim that substantive political theory decisively closes the remaining gap. The 2011 restatement is more explicit still: the claim that there is no right answer is itself, on Dworkin's account, a legal claim that must be argued for and can be defeated, never a default available for the asking. This is the content that survives 1977 to 2011 unchanged, worded differently in each foundation but identical in its operative effect: there is no case, however abstract the text or however deep the moral disagreement, in which the Dworkinian instruction licenses a judge to conclude that the search has failed. That is not a truism. It is a substantive and contestable commitment, rejected by name by most of the rivals Dworkin spent his career answering, and it is the actual referent of the invariant core in this paper. Everything that follows explains why that specific commitment, not the generic one, has the transmission properties it has.

8.1 The objection from the wider non-positivist family

A second objection is more serious than the first, because it cannot be answered by sharpening a definition. The no-stopping-point commitment specified above is not unique to Dworkin within the broader family of non-positivist theories of law. John Finnis's natural law theory has no comparable stopping point: practical reason, on Finnis's account, is always in principle capable of identifying the requirement of practical reasonableness a case calls for, however difficult that identification proves. Robert Alexy's principles theory, discussed further in Section 9.2, likewise denies that rights adjudication runs out; the entire point of his weight formula is to supply a procedure that always yields a comparative result. If the no-stopping-point commitment is a family trait rather than a Dworkinian peculiarity, Section 8 explains why non-positivism as a whole resists the triviality objection, but it does not yet explain why Dworkin's particular formulation, among several competitors sharing the same core commitment, is the one this paper examines.

One candidate answer, offered here as a conjecture rather than a demonstrated result, concerns metaphysical cost. Finnis's account requires accepting a substantive theory of basic goods and practical reasonableness with explicitly teleological, and in his own presentation theologically compatible, commitments that a secular or religiously plural judiciary may resist adopting even nominally. Alexy's account requires accepting a formal optimisation structure, the weight formula, as a procedure, which imports its own contestable premises about the commensurability of competing rights. Dworkin's account requires neither: it asks only that the interpreter accept that moral argument, conducted from within legal practice, can in principle be better or worse, a claim compatible with a wide range of first-order moral and political commitments. If this difference in metaphysical entry cost is real, it would predict that the Dworkinian variant, precisely because it is the least metaphysically demanding member of the family, achieves broader uptake across ideologically and religiously heterogeneous judiciaries than either Finnis's or Alexy's version, while all three remain equally resistant to the objection of Section 8. This is a testable claim about intra-family competition, not established here; Section 11.4 specifies what would need to be measured.

9. Why the No-Stopping-Point Commitment Can Acquire Exceptional Transmission Fitness

Having specified what is invariant, three questions become tractable rather than merely evocative: why can that particular commitment outcompete rival adjudicative strategies in some environments (9.1), what feature of its central tool supplies that advantage in practice (9.2), and what does its success redistribute (9.3). The three answers are not three illustrations of the same headline. They are three stages of one argument: a strategic advantage that operates through a specific structural property of the tool that carries it, with a political consequence that follows from both.

9.1 The strategic advantage, conditioned on the local prestige economy

Model the judicial and academic field as a population of competing interpretive strategies, and treat the payoff to each strategy as a function of the local prestige economy rather than as a universal constant. Where the reward structure of legal academia and appellate practice attaches prestige to the appearance of principled moral resolution, a strategy that concedes a stopping point, as textualism and proceduralism do, pays an immediate reputational cost whenever a hard case forces it to say this is not for the theory to decide, and a strategy with no stopping point, which always has a further principle available to invoke, avoids that cost. This describes much of the environment in which German, Colombian, South African and Argentine constitutional adjudication developed. It does not describe every environment. American constitutional practice over the same decades built a rival prestige economy in which restraint, deference and textual fidelity themselves carry academic and judicial capital, most visibly through the network of textualist and originalist scholarship; there, conceding indeterminacy or deferring to the political branches is not obviously penalised and may be rewarded.

The model therefore predicts uneven adoption, not universal adoption, and the unevenness is itself falsifiable: the no-stopping-point strategy should dominate in judiciaries and academies whose prestige economy rewards principled moral resolution over restraint, and should fail to dominate, or coexist in a mixed equilibrium, where the prestige economy rewards the opposite. This is a sharper and more easily falsified claim than a universal reputational-cost premise would be, and Section 11.1 specifies how to test it directly rather than assume it. Where the strategy does dominate, once installed it behaves, in the sense of Section 2.2, as an evolutionarily stable strategy within that specific prestige economy: a judge who reverts to conceding indeterminacy pays an immediate reputational cost, while the benefit of that candour, protecting the boundary between adjudication and legislation, remains diffuse and deferred. This is the same asymmetric lock-in structure documented, for a different institutional domain, in an earlier study of Argentina's labour regime (Lerer, 2025): concentrated and immediate defection costs set against dispersed and postponed benefits.

9.2 The structural mechanism, and why it is not Alexy's mechanism

The distinction enabling the strategy to function is precisely formulated as early as 1977:

Las normas son aplicables a la manera de disyuntivas. [...] Los principios tienen una dimensión que falta en las normas: la dimensión del peso o importancia.

Taking Rights Seriously (1977), ch. 2, "The Model of Rules I," sect. 3. Spanish edition; English rendering mine: "Rules are applicable in an all-or-nothing fashion. (...) Principles have a dimension that rules lack: the dimension of weight or importance." The phrase "a dimension of weight or importance" is quoted verbatim from the English original in Essert (2016).

A rule that applies all-or-nothing can be shown to have been misapplied, which is exactly what gives a stopping point its force: a rule can run out. A principle that is weighed cannot be shown misapplied in the same way, because the weight assigned is precisely what is in dispute. This is the structural reason the no-stopping-point commitment is not merely asserted but practically sustained: its central working tool is, by design, a type of reason that never runs out and whose

application can never be demonstrated wrong, only reweighed. Section 9.1's strategic advantage and this structural mechanism are the same phenomenon seen from two angles: the strategy dominates, where it dominates, because its tool cannot be shown to fail.

This is also the point at which Alexy's project must be distinguished from Dworkin's, since the two are often run together in comparative constitutional scholarship and the distinction matters for what follows. Alexy's weight formula is an explicit attempt to impose exactly the kind of stopping point Dworkin's principles theory declines to impose: it specifies a procedure, assigning values to intensity of interference, abstract weight and reliability of the underlying empirical assumptions, whose intended output is a determinate ranking. [Verified: Alexy, *Theorie der Grundrechte*, 1985] Whether that procedure succeeds is disputed on its own terms in the comparative-law literature and is not adjudicated here; the point that matters is that the ambition itself, formal determinacy, is foreign to Dworkin's principles, whose weight, in the 1977 formulation, is exactly what remains undetermined by any stated procedure. This is also why proportionality's global diffusion cannot serve as evidence for the transmission fitness of the no-stopping-point commitment. Proportionality descends principally from nineteenth-century Prussian administrative law, was constitutionalised by the Bundesverfassungsgericht beginning with Lüth in 1958, and was given its most influential formal structure by Alexy in 1985. [Verified: Lüth, BVerfGE 7, 198 (1958); Alexy, 1985] Its spread through Colombian and South African constitutional practice documents the success of that rival, determinacy-seeking programme, not the success of Dworkin's thesis. Section 10 corrects the test accordingly.

9.3 The political consequence: what a search that cannot fail redistributes

James C. Scott distinguished the public transcript of an institution, how it explains itself, from the hidden transcript of what it actually distributes. The public transcript of the Dworkinian position is that objective morality perfects the legal system. The hidden transcript, made explicit by Juan Antonio García Amado, professor of legal philosophy at the University of León and one of the most persistent critics of neoconstitutionalism in the Spanish-speaking world, is the capture of final normative authority by an unelected body.

The connection to Sections 9.1 and 9.2 is direct rather than analogical. A court operating under a theory with a stopping point can, in principle, tell the legislature that a given question is not for the judiciary to settle. A court operating under a theory in which the search cannot fail has no comparable exit: there is, by the thesis's own terms, always a further principle to invoke, so the court is never in a position to concede that the matter properly belongs elsewhere. Sovereignty migrates from legislatures to courts not as a contingent side effect of ambitious judges but as the structural entailment of the specific commitment identified in Section 8.

Dworkin does not deny the migration. He redefines it. He states the objection with precision, in his own terms:

Since the Constitution contains abstract moral principles, fidelity gives judges too much leeway to condemn laws that seem unjust to them though they have been endorsed by a properly elected legislature.

Justice in Robes (2006), ch. 5, "Originalism and Fidelity," p. 132.

And he answers by displacing the concept of democracy itself, beginning in 1996 with the premise to be defeated:

Should we accept or reject what I shall call the majoritarian premise? This is a thesis about the fair outcomes of a political process: it insists that political procedures should be designed so that, at least on important matters, the decision that is reached is the decision that a majority or plurality of citizens favors.

Freedom's Law (1996), Introduction, pp. 15-16.

Later I will defend an account, which I call the constitutional conception of democracy, that does reject the majoritarian premise. [...] It takes the defining aim of democracy to be a different one: that collective decisions be made by political institutions whose structure, composition, and practices treat all members of the community, as individuals, with equal concern and respect. Democracy means government subject to conditions, we might call these the 'democratic' conditions, of equal status for all citizens.

Freedom's Law (1996), Introduction, p. 17.

By 2006 the same argument is recast as partnership democracy:

You can't say that the majority has an automatic, default, title to make those interpretive decisions without begging the question, because of course the majority has no title to govern unless the conditions are satisfied. It begs the question to think that the concept of democracy can dictate which institutions should or should not be given final interpretive authority.

Justice in Robes (2006), ch. 5, pp. 133-134.

The redefinition of democracy does not refute the infrapolitical reading; it exemplifies it. It is the public transcript that relegitimizes the redistribution the hidden transcript conceals. Dworkin does not assert that he has transferred sovereignty to judges; he asserts that what looks like a transfer is, properly understood, democracy better realised. In this programme's vocabulary: elite capture executed at the level of the definition of the game. The contest is not over who wins the match but over what counts as playing democratically, and the Dworkinian answer functions as evidence for the model rather than as an objection to it.

The counter-reaction García Amado describes, governments capturing judges once they grasp that real power has migrated there, is the expected move of a player competing for control of the payoff function once that migration is structural rather than incidental. If judges can never concede that a question belongs elsewhere, the rational strategy for political power is to capture who occupies the seats rather than to contest the content of the rules. This is consistent with the Dennett-Nash matrix developed in the programme's foundational paper (Lerer, forthcoming a):

when an actor plays at an intentional level other than the one institutional design presupposes, judges playing objective morality while political power plays control of appointments, a frame gap opens which the actor with greater capacity to reconfigure the game exploits.

A further, more specific configuration is worth flagging without overclaiming it. If the no-stopping-point commitment becomes doctrinally formalised as an axiom, while it remains unverifiable which answer is correct or who holds final epistemic authority to declare it, the structure of high entrenchment with high implementation gap obtains: maximal formal commitment with substantive outcomes that cannot be audited. This would be a sophisticated instance of what the programme elsewhere calls a zombie-law equilibrium, not because the norm goes unenforced but because it is a methodological norm that legitimates any outcome as compliance. This remains a conjecture pending measurement of entrenchment and implementation gap over a concrete doctrinal corpus, and is not asserted as established here. [Working conjecture]

10. Toward a Properly Specified Test

Section 9.1 predicts that, within judiciaries whose prestige economy rewards principled resolution, adherence to the no-stopping-point commitment should be insensitive to the academic fate of any particular justificatory vehicle. Testing that prediction requires an observable that tracks the commitment itself, not a doctrinal vehicle that happens to co-occur with it in some jurisdictions.

An earlier draft of this paper used the post-1994 diffusion of proportionality reasoning in Colombia and South Africa as an illustrative proxy. That proxy is invalid, for the reason given in Section 9.2: proportionality descends principally from German administrative and constitutional dogmatics, predates Dworkin's thesis by decades, and was carried into Colombian and South African practice through reception of the German model and of Alexy's theory, not of Dworkin's. A test built on proportionality-doctrine diffusion measures the fitness of a rival, determinacy-seeking research programme, not the fitness of the commitment this paper is about. That check is withdrawn.

The correct observable is the conduct Section 8 identifies as the actual content of the thesis: the incidence of a court declining to resolve a case on the ground that the applicable materials do not yield an answer. Doctrines built for exactly this purpose exist and differ in strength across jurisdictions, among them the political-question doctrine and standing or ripeness thresholds in the United States, the non liquet prohibition and its exceptions in international adjudication, and the various justiciability thresholds constitutional courts use to keep certain questions off their docket. If the no-stopping-point commitment has the transmission fitness this paper claims, its spread should be measurable as a decline, over time and holding subject matter constant, in a court's willingness to invoke those doctrines in cases that plausibly admit of principled resolution, independently of the reputational fortunes of any single Dworkinian vehicle.

No such corpus has been assembled for this paper, and no claim of confirmation is made here. What can be stated, and only this, is that the previous illustrative check is withdrawn as invalid, and that Section 11.1 now specifies the observable a valid test requires.

11. Predictions for Future Work

11.1 Vehicle-independence of the operative core

Corpus: constitutional and apex-court decisions in Germany, Colombia, South Africa, Argentina and the United States, 1985 to 2015, coded by year and by the court's explicit or implicit invocation of a stopping-point doctrine, political question, non-justiciability, standing or ripeness grounds for declining to reach the merits, in cases whose subject matter plausibly admits of principled resolution. Compare the annual rate of such invocations against a timeline of major academic critiques of Dworkin's successive vehicles, Hart 1994, Waldron 1999, Fish 2005, Posner various. Prediction: no statistically detectable change in the rate of stopping-point invocation attributable to any single critique, within jurisdictions whose prestige economy rewards principled resolution as specified in Section 9.1.

11.2 Comparative entrenchment of no-stopping-point versus stopping-point doctrines

Apply the Cultural Load Index, scored independently on its three dimensions, to a matched sample of no-stopping-point interpretive doctrines, principle-weighting and purposive interpretation admitting no residual indeterminacy, and stopping-point doctrines, political question, standing, ripeness, non liquet, within the same jurisdictions. Prediction: CLI for no-stopping-point doctrines exceeds CLI for stopping-point doctrines on all three dimensions, with the largest gap on the elite-gatekeeping dimension.

11.3 Reduced reputational cost of departing from positive law

If principle-based reasoning allows any departure from the enacted rule to be reclassified as discovery of the correct underlying principle, it should be measurable, within jurisdictions whose prestige economy rewards principled resolution, as a reduction, relative to jurisdictions or periods without comparable doctrinal apparatus, in the citation-based reputational penalty judges incur for departing from clear statutory text. This is the same infrapolitical selection pressure apparatus already applied elsewhere in this programme to private actors, applied here to judicial behaviour.

11.4 Intra-family competition and metaphysical cost

Corpus: jurisdictions and judiciaries where Finnis-style natural law reasoning, Alexy-style balancing formalism and Dworkin-style principles reasoning have each been influential, coded for the religious and ideological heterogeneity of the judiciary and legal academy at the time of adoption. Prediction: controlling for colonial and doctrinal transmission channels, Dworkin's variant achieves broader uptake in more religiously and ideologically heterogeneous environments, consistent with the metaphysical-cost conjecture of Section 8.1.

None of the four predictions above has been executed. Section 10 explains why no substitute check is offered in its place.

12. Limitations

The argument is meta-legal and analyses no case law. Section 10 corrects an invalid empirical proxy used in an earlier draft but does not replace it with an executed test; every prediction in Section 11 remains a research agenda, not evidence gathered here. The Cultural Load Index and the associated constructs lack independent external validation.

The reading of Dworkin's development as intellectual evolution rather than strategic immunisation is deliberate, and, in the author's judgment, required by intellectual honesty. But it means the central claim of Sections 7 and 8 is a structural claim about the relation between vehicle and core, not a claim about the author's motives. Nothing in this paper depends on attributing bad faith, and nothing in it would be strengthened by doing so.

The claim that the no-stopping-point commitment has higher transmission fitness than rival adjudicative strategies, within jurisdictions whose prestige economy rewards principled resolution, is a modelling result, not a measured one. Section 11 specifies what would have to be measured.

Two further limitations concern arguments introduced in this revision specifically. Section 8.1's metaphysical-cost conjecture and Section 9.1's jurisdiction-dependent payoff structure are offered as refinements that make the paper's claims more falsifiable, not as results already confirmed; both require the empirical work specified in Section 11 before either can be asserted rather than proposed. And because Section 10 withdraws the only empirical illustration the previous draft offered, this paper currently contains no executed check of any kind; it is, at this stage, a fully theoretical contribution whose value depends on the research agenda of Section 11 being carried out.

Note on Sources and Editions

Every quotation in this paper was verified against the text of the edition cited. Quotations from *A Matter of Principle*, *Law's Empire*, *Freedom's Law and Justice in Robes* are reproduced verbatim from the English editions, at the pages indicated. Quotations from *Taking Rights Seriously* (Ariel, trans. Guastavino) and *Justice for Hedgehogs* (Fondo de Cultura Económica) were verified in those Spanish editions, which were the ones consulted; for these the Spanish text is given first, followed by an English rendering in square brackets that is mine and carries no authority. This applies in particular to the passages introducing Hercules and distinguishing rules from principles, whose canonical English phrasing differs from the renderings given here. The single exception is the phrase a dimension of weight or importance, quoted verbatim from the English original as it appears in Essert (2016).

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